

21SMCV01145 21SMCV01145

County: los-angeles

Division: Civil Law and Motion

Department: I

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The court has four ex parte applications by plaintiff. One is to allow further briefing on Perales. The court will not allow further briefing at this time. If, at the hearing, it becomes apparent that the court needs more briefing, the matter can be discussed then. That application is DENIED.

The second is to allow a supplemental declaration from counsel regarding defense counsel's claim that a letter plaintiff's counsel sent was generated by AI. The court does not believe that it will help to have further briefing on that. The application is DENIED.

The third relates to the McCourt deposition. The court is not sure of the status. The date plaintiff wanted was not convenient to McCourt, but it appeared that McCourt offered alternative dates if the motion for terminating sanctions was not granted. As it turns out, it was neither granted nor denied—it was continued. As such, it is likely that the suggested dates no longer work. However, it appears that McCourt is not objecting to a deposition if the motion is denied, so the court is inclined to have the parties work this out. For now, the matter is not ripe and the application is DENIED.

The fourth is an effort to file the various papers that were before the court last week but for which the court had not seen a request for leave to file them until the morning of the hearing. Plaintiff asks for leave to file it now. That request is DENIED. The court does not believe it will add anything useful to the mix, and filing 10 additional declarations in sur-reply

is not proper.

In short, all four applications are DENIED. The court will not hear argument on this today.